

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1337

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO IRRIGATION DISTRICTS; AMENDING SECTION 43-201, IDAHO CODE, TO
REVISE PROVISIONS REGARDING IRRIGATION DISTRICT DIRECTORS; AND DECLAR-
ING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 43-201, Idaho Code, be, and the same is hereby
amended to read as follows:

43-201. ELECTION, TERM OF OFFICE, NOMINATIONS AND QUALIFICATIONS. (1)
Following the organization of any district, an election shall be held in ac-
cordance with section 34-106, Idaho Code, at which shall be elected one (1)
director for each division of said district by the electors of the district
at large.

(2) The term of office of the directors shall, immediately after the
first election following such organization, be selected by lot so that as
nearly as may be one-third (1/3) of the number shall hold office for the term
of one (1) year, one-third (1/3) for the term of two (2) years, and the bal-
ance for the term of three (3) years. An election shall be held in the dis-
trict each year thereafter in accordance with section 34-106, Idaho Code, to
elect directors to succeed those whose terms expire. Each director's term
of office shall commence on the regularly scheduled board meeting closest
to the date specified for taking office in section 34-106, Idaho Code, and
shall continue for a term of three (3) years and until their successors are
elected and qualified. If no director is elected and qualified at the end of
an incumbent director's three (3) year term, an election shall be held at the
next regular election of the irrigation district for the incumbent direc-
tor's successor to hold office for the remainder of the unexpired term. This
election requirement shall apply retroactively where an incumbent director
remains in office on the date of the effective date of this act because the
incumbent's successor was not elected and qualified in the 2012 election.

(3) (a) Every director must be a qualified elector and a resident of the
division of the director whom he is to succeed in office; provided that
~~the:~~

(i) The district's bylaws may, by resolution of two-thirds (2/3)
of the board and adoption by two-thirds (2/3) of the electors
voting in a district election conducted in accordance with the
general election laws of the state applicable to irrigation dis-
tricts, set forth a provision allowing a district landowner to
serve as the director from the division in which the landowner owns
land, if the landowner possesses all the qualifications required
of electors under the general laws of the state and has resided
within fifteen (15) miles of the district for a period of at least
thirty (30) days prior to the election; ~~provided further that any~~

~~landowner who owns land in more than one (1) division may serve as the director only from the division nearest which he resides.; and (ii) Any landowner who owns land in more than one (1) division may serve as the director only from the division nearest which he resides.~~

(b) Notwithstanding any other provision of this subsection, for districts of fifteen thousand (15,000) acres or less, and upon approval of two-thirds (2/3) of the board, a district landowner may serve as a director from a division in which the landowner owns land as long as the landowner resides in the county where some portion of the district is located or in an adjoining county.

(4) Candidates for election to the office of director of an irrigation district shall be nominated by nominating petitions on forms provided by the district. Each nominating petition shall:

- (a) Identify the name of the nominee;
- (b) Identify the office for which the nomination is made;
- (c) Identify the term for which nomination is made;
- (d) Be signed by at least six (6) electors in districts having less than one hundred (100) resident electors and by at least twelve (12) electors in districts having more than one hundred (100) resident electors; and
- (e) Be filed with the secretary of the district not less than forty (40) days or more than sixty (60) days before the date of election; and the names of the persons so nominated shall be placed upon the official ballot to be furnished by the district.

(5) Each nominee shall subscribe to a nominee's oath on a form provided by the irrigation district and shall submit the oath to the secretary of the district with the written nomination. The oath shall:

- (a) Identify the land the nominee owns within the district;
- (b) Provide the address of the nominee's residence;
- (c) Certify that the nominee meets the residency and qualification requirements of subsection (3) of this section and section 43-111, Idaho Code; and
- (d) Certify that the nominee will meet such requirements on the date of election.

The secretary of the district shall verify the qualifications of each nominee and shall, no more than seven (7) days after the close of filing, certify the qualified nominees for inclusion on the election ballot. If at any time prior to the election, circumstances change so that a nominee no longer meets the qualification requirements of section 43-111, Idaho Code, the nominee shall be disqualified, shall not take office if elected, and shall immediately file with the secretary of the district a written withdrawal of his nomination for the office of director. The secretary shall not place on the election ballot the name of any candidate that does not meet the qualification requirements of section 43-111, Idaho Code.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.